
PRIVY COUNCIL

OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-PC 15

IN THE MATTER OF

s.22 distributes the first-instance tier as County Courts "one per jurisdiction-repo," yet the realm operates a central Privy Council (REALM-PC) for its own constitutional and governance first-instance matters. (i) Is the VJS repository a County Court, the realm-as-state super-repo, or something else? (ii) Where are first-instance matters concerning the super-repo itself heard? (iii) What is the status of the central Privy Council relative to the distributed s.22(1) County Courts, and does the answer need a declaratory conforming note to s.22?

Before:

Marsden J, Coade J, Goffe J

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

REASONS

1. IN THE PRIVY COUNCIL OF THE REALM (CONSTITUTIONAL FIRST INSTANCE). On the Founder's reference of the VJS self-classification question (MoJ policy briefing). Before Marsden J, Coade J and Goffe J, sitting three at constitutional first instance. Symmetric researched intake under CASE-LAW s. 19(1). [2026] REALM-PC 15.
2. THE QUESTION RESERVED. s. 22 distributes ALL first-instance seats as County Courts 'one per jurisdiction-repo,' yet the realm runs a CENTRAL Privy Council (REALM-PC) for its own constitutional and governance first-instance matters. (i) Where are first-instance matters concerning the super-repo itself heard? (ii) Is the central Privy Council a DISTINCT central constitutional first-instance court sitting at the realm level, or merely 'the County Court at the super-repo'? (iii) Does the answer require a declaratory conforming note to s. 22, or is it already given effect by s. 22 read with s. 10/s. 13 and the citation scheme?
3. THE SETTLED CORE, CONFIRMED (s. 11(c)). We confirm at the threshold, and decline to re-litigate, that the VJS repository is the realm-as-state SUPER-REPO (s. 22(3); [2026] REALM-SC 6), not a County Court. It owns the one statute book, hosts the central apex and the Privy Council, and carries the central REALM-* series; s. 22(3) is express that 'No super-repo or ministry is a sovereign, a court, or a second governance home; none enacts or owns a statute book or apex of its own.' The super-repo is not a court; the courts sit within it. The [2026] REALM-PC 14 seat condition (a genuine jurisdiction-repo seated as a local seat of the one judiciary, recording jurisdiction-local precedent, owning no forked statute book/apex) fails for the super-repo at every limb in the disqualifying direction. The Defendant rightly concedes the super-repo is not a court; that concession is correct and binds the analysis.
4. THE REFINEMENT. The dispute is narrow and structural. The Defendant's strongest case (Grounds 1, 4) is that s. 22(1) distributes 'the SEAT of the first-instance tier' in its entirety, one per jurisdiction-repo, so the whole first-instance tier is constituted by per-repo County Courts and nothing else; that s. 22(2)'s 'adds no tier, seat, or apex' is a disabling clause leaving REALM-PC textually un-seated; and that s. 10 (tiers and bench sizes) and s. 13 (progression) do not 'seat' a court, so REALM-PC rests on no enacted seat and is an unmoored organ run on convention. We have tested that case at its highest and reject it. We prefer the Claimant's construction, for the following reasons, which we hold to be the soundest reading of s. 22 as a whole.

1. s. 22(1) DOES NOT FIRE ON THE SUPER-REPO. s. 22(1) seats 'one [County Court] per jurisdiction-repo,' a 'local seat' recording 'jurisdiction-local caselaw' on a CC-<repo> series. The unit of distribution is the jurisdiction-repo, an operational repo over which a local seat applies the one CASE-LAW. By the settled core the super-repo is not such a thing; it is the realm-as-state that HOLDS the Ministry of Justice that holds the courts, and is itself 'not a court.' These are different categories. The rule 'one County Court per jurisdiction-repo' applies its consequence to each jurisdiction-repo; the super-repo is not a jurisdiction-repo, so the rule does not reach it and no County Court is seated at it. To manufacture 'the County Court at the super-repo' is to extend the rule past its own trigger, and to do the very thing s. 22(2) forbids by adding a seat the article does not distribute. The Defendant's Ground 2 (the super-repo 'is a repo,' so the rule plants a County Court there) equivocates on 'repo': s. 22(1) distributes to a JURISDICTION-repo (an operational seat of local work), and the settled core holds the super-repo is categorically not that, but the governance core that is 'not a court.'
2. THE 'ADDS NO SEAT' CLAUSE CONSERVES, IT DOES NOT UN-SEAT. The Defendant's pivot (Ground 4) reads 'adds no tier, seat, or apex' as a disabling provision that withholds authority for any central first instance. That misreads a declaratory article. s. 22 is expressly declaratory (it 'ELABORATES s. 10 and gives effect to s. 9'); it 'creates no new power, tier, seat, or bench size' precisely because it is conserving the s. 10 settlement, not legislating fresh geography. 'Adds no seat' therefore means s. 22 invented nothing: it presupposes the s. 10 first-instance tier already constituted and, for the realm's own matters, already sitting centrally, just as the single apex already sits centrally, and it then distributes the PROJECT seats of that tier outward to the jurisdiction-repos. REALM-PC is not a seat 'added' by s. 22; it is the antecedent central first instance s. 22 left exactly where it found it. So far from being unmoored, the central first instance is the thing 'adds no seat' protects from being read out of existence by the distribution it accompanies.

3. s. 10 CONSTITUTES, s. 22 ROUTES, AND THE COUNTY COURTS PROVE IT. The Defendant says s. 10 fixes only tiers and bench sizes and s. 13 only progression, so neither 'seats' REALM-PC. But this proves far too much. If s. 10/s. 13 cannot seat a first-instance court, then the County Courts are equally unseated, for they too are merely the s. 10 First-Instance tier with their seat routed by s. 22(1). The realm plainly does seat them. The correct account, then, is that s. 10 CONSTITUTES the one First-Instance tier (single judge; small odd bench under s. 18); s. 22(1) ROUTES the seat of that tier to each jurisdiction-repo for project matters; and the realm's OWN first-instance matters, having no jurisdiction-repo to be routed to (their subject being the realm itself), remain where the tier was always seated for them: centrally, at the MoJ / realm level, in the Privy Council. There is no gap and no surplus. s. 22(1) distributes the first-instance seats THAT ATTACH TO JURISDICTION-REPOS; it says nothing of, and cannot reach, matters that have no jurisdiction-repo. s. 13's role is then exactly as enacted: those central first-instance matters commence at first instance (here, central) and climb by progression; s. 13 presupposes the court, which s. 10 supplies and s. 22 conserves.
4. THE CITATION SCHEME MARKS STATUS AS SUBSTANCE. Under the settled scheme a County Court 'records local precedent only' on 'a CC-<repo> series' and owns no central series, while the central courts carry the central REALM-* series. REALM-PC carries REALM-PC, a central REALM-* series on the master citator (the INDEX expressly: 'REALM-PC (Privy Council, constitutional first instance)'), never a CC-<super-repo> series. That is the citation signature of a central organ, not a local seat. The Defendant turns this to advantage in Ground 3, observing that REALM-PC fits neither the County Court mould (it carries no local series, its ratio binds realm-wide) nor the s. 22(2) appellate enumeration. We agree it fits neither, and that is the answer, not the difficulty: it is neither a County Court nor an appellate organ because it is the CENTRAL FIRST-INSTANCE member of the realm's central judicial family, which s. 22(2) locates at the MoJ / realm level when it places the central, realm-belonging courts there. The Claimant does not, and need not, contend REALM-PC is the Court of Appeal or the Supreme Court; it plainly is first instance, as its REALM-PC numbering and its subject-matter show.

5. THE LABEL OBJECTION IS MET BY SUBSTANCE. The Defendant's most pointed thrust (Ground 5) deploys [2026] REALM-PC 14 and s. 22(4): a court is constituted by SUBSTANCE, never by a label or token; a self-description ('Privy Council (constitutional first instance)') cannot seat a court. We accept the rule and apply it, and it cuts for the Claimant. REALM-PC's central status does NOT rest on a topology-doc or citation-map word; it rests on substance and seat: a central organ, at the realm level, carrying the central series, adjudicating the realm itself, in the s. 10 First-Instance tier conserved by s. 22(2). s. 22(4) voids a label only 'to the extent it governs which law applies or how a matter progresses.' Here the descriptive label governs nothing; the status is independently grounded in s. 10 read with s. 22(2). The label merely describes a substance that exists without it, which is the lawful, non-void use of a descriptive name (s. 22(4); s. 21(4)). Sumner J's obiter in REALM-PC 14, that no single root token constitutes a court 'in isolation from the substance and the seat,' is satisfied here precisely because the substance and the seat are present and load-bearing.
6. THE STRAIN THE DEFENDANT IDENTIFIES IS REAL BUT IS RESOLVED, NOT PAPERED OVER. The Defendant is right (Grounds 6, 8) that the architecture DEMANDS a central first-instance court (the realm's own constitutional matters cannot be heard in a single jurisdiction-repo's County Court, whose ratio is local-only and never realm-wide), and that the topology and citation-map docs describe REALM-PC's seating in prose ('leapfrogs CoA->SC,' 'one per division') that s. 22 does not enact verbatim. We accept the duty (s. 1, s. 2) not to leave a load-bearing court resting on convention. But the resolution is construction, not amendment: the architecture demands the central first instance, and s. 22 read with s. 10/s. 13 SUPPLIES it, because s. 10 constitutes the tier and s. 22 conserves its central seat for realm matters while routing only the project seats outward. The doc-prose 'one per division' and 'leapfrogs CoA->SC' are imprecise glosses; to the extent any such gloss purports to add a seat per division or a leapfrog s. 13 does not authorise, it is void under s. 22(4)/s. 21(4) and is not the law. The law is as we have construed it: one central first-instance court for realm matters, climbing by ordinary progression (s. 13), no leapfrog save the Principal's certificate (s. 13, s. 20).

7. WHETHER A CONFORMING NOTE IS NEEDED. We hold the result is ALREADY GIVEN EFFECT by s. 22 read with s. 10 and s. 13 and the Bill 16 citation scheme, and that no amendment to s. 22 is required. s. 22(1) by its trigger does not reach the super-repo; s. 22(2) supplies the MoJ / realm level at which central, realm-belonging courts sit and conserves the s. 10 tier rather than un-seating it; s. 22(3) makes the super-repo not a court but the holder of the courts; s. 10 constitutes the first-instance tier; s. 13 governs its progression; and the central REALM-PC series already records realm constitutional first instance centrally. This ruling stands as DECLARATORY precedent giving effect to that construction, in the same declaratory character as s. 22 itself. The Committee need draft nothing. We add one safeguard against the Defendant's fair concern: because the matter was genuinely arguable and the doc-prose had begun to drift, the engineering record (the topology and citation-map docs) should be conformed to this judgment as a forward, restorative engineering step (CASE-LAW s. 6), correcting any gloss ('one per division'; an un-enacted leapfrog) to read with this ratio. That is an engineering conformance direction, not a statutory amendment, and adds no tier or seat.
8. WANT OF VIRES, ANSWERED. The Defendant's prospective vires point falls away on the construction we adopt: REALM-PC is seated by s. 10 as conserved by s. 22(2), so it is not an unmoored seat and its good-law line (REALM-PC 1-4, 6-14, the voided/superseded entries apart) rests on a lawfully constituted central first instance. Nothing in this judgment voids any past ruling; consistent with [2026] REALM-SC 7 and s. 18(5), nullity is found entry-by-entry on the deterministic record and is never presumed wholesale, and s. 18(5) speaks to bench constitution (odd membership, no synthesiser-on-top), not to the seating of a court, which is sound.
9. PROGRESSION. This is a constitutional first-instance reference disposed of here. It climbs only by permission to appeal on an arguable ground (s. 11(a), s. 19(3)); none is certified on the face of this judgment.

DISPOSAL

10. Reference answered, unanimous (3-0): Marsden J (judgment of the Court), Coade J and Goffe J concurring in full. The Court (i) CONFIRMS the settled core: the VJS repository is the realm-as-state super-repo (s. 22(3); [2026] REALM-SC 6), not a County Court, and the [2026] REALM-PC 14 seat condition fails for it; (ii) HOLDS that first-instance matters concerning the realm itself are heard in the central Privy Council (REALM-PC) at the MoJ / realm level; (iii) HOLDS that the central Privy Council is a DISTINCT central constitutional/governance first-instance court, the s. 10 First-Instance tier sitting centrally for realm matters, not 'the County Court at the super-repo' and no new tier, seat, or apex (s. 22(2)); and (iv) HOLDS the result is already given effect by s. 22 read with s. 10/s. 13 and the Bill 16 citation scheme, so no conforming note to s. 22 is required, this ruling standing as declaratory precedent. A forward engineering conformance direction issues (restorative, s. 6) to align the topology and citation-map docs with this ratio. The matter does NOT climb: disposed of at constitutional first instance, it climbs only by permission to appeal on an arguable ground (s. 11(a), s. 19(3)); none is certified.

ON A CONFORMING NOTE TO S.22

11. NONE. No declaratory conforming note to s. 22 is needed: s. 22 read with s. 10 and s. 13 and the Bill 16 citation scheme already gives effect to the result. Reasons, in short: (a) s. 22(1) does not fire on the super-repo, which is not a jurisdiction-repo but the realm-as-state that is 'not a court' (s. 22(3)); (b) s. 22(2)'s 'adds no tier, seat, or apex' CONSERVES the s. 10 first-instance tier and its central seat for realm matters rather than un-seating it, distributing outward only the PROJECT seats; (c) s. 10 constitutes the First-Instance tier and s. 13 governs its progression, exactly as they do for the County Courts; (d) the central REALM-PC series already records realm constitutional first instance centrally. This ruling stands as declaratory precedent and the Committee need draft nothing. One forward, non-statutory engineering conformance step is directed (CASE-LAW s. 6, restorative): align the topology and citation-map docs to this ratio, correcting any drift-gloss (e.g. 'one per division', an un-enacted CoA->SC leapfrog) so the prose reads with the law; this adds no tier or seat and is not an amendment.

1. The settled core is confirmed and not re-litigable (CASE-LAW s. 11(c)): the VJS repository is the realm-as-state super-repo (s. 22(3); [2026] REALM-SC 6), NOT a County Court. It owns the one statute book, hosts the central apex and the Privy Council, carries the central REALM-* series, and is 'not a court' but the holder of the courts. The [2026] REALM-PC 14 formation condition fails for it at every limb in the disqualifying direction: it is not a jurisdiction-repo, it records no jurisdiction-local CC-<repo> precedent, and far from owning no forked statute book it OWNS the one statute book. The super-repo therefore seats no County Court under s. 22(1), the distribution rule not firing on a thing that is not a jurisdiction-repo. 2. First-instance matters concerning the realm itself (the super-repo's own governance, CASE-LAW, the machinery, and meta-engineering) are heard in the central Privy Council (REALM-PC), sitting at the Ministry-of-Justice / realm level and belonging to the realm (s. 22(2)), distinct from the distributed s. 22(1) County Courts which hear project-local matters seated at the operational jurisdiction-repos. 3. The central Privy Council (REALM-PC) is a DISTINCT central constitutional/governance first-instance court, NOT 'the County Court at the super-repo.' It is the s. 10 First-Instance tier (single judge, or a small odd bench under s. 18) sitting CENTRALLY for realm-level matters, exactly as the single apex sits centrally. It is no new tier, seat, or apex within s. 22(2): s. 22 distributed only the SEAT of first instance ACROSS jurisdiction-repos for PROJECT matters; it never displaced, and so left untouched, the realm's own central first instance for its own matters. The citation signature confirms status as substance, not label: REALM-PC carries the central REALM-* series on the master citator, never a CC-<repo> local series, which is the signature of a central organ and not of a local seat. 4. The s. 22(2) clause 'adds no tier, seat, or apex' is a DISABLING and CONSERVING clause, not a clause that un-seats the central first instance. It means s. 22 creates nothing new; it presupposes the s. 10 first-instance tier already constituted and already seated centrally for realm matters before s. 22 distributed PROJECT seats outward. REALM-PC is not 'added' by s. 22; it is the antecedent central first instance s. 22 did not move. The contrary submission, that s. 10/s. 13 do not 'seat' a court, proves too much: on it no first-instance court anywhere (the County Courts included) would be seated, yet s. 22(1) plainly seats those, so 'seat' in s. 22 is a routing of an already-constituted tier, which is exactly what the realm's own central first instance enjoys. 5. The substance-not-label rule of [2026] REALM-PC 14 (with s. 21(4)/s. 22(4)) is satisfied, not offended: REALM-PC's central constitutional status rests on SUBSTANCE and SEAT (central, realm-level, carrying the central series, adjudicating the realm itself) and not on a descriptive topology-doc or citation-map word. s. 22(4) voids a label only to the extent it GOVERNS which law applies or how a matter progresses; here the label is

merely descriptive of a status independently grounded in s. 10 read with s. 22(2), so nothing void is doing constitutive work.

GOOD-LAW

Citation: [2026] REALM-PC 15

PROGRESSION *Constitutional matter. Appeal lies by automatic leapfrog certificate (s. 13, s. 20), bypassing the Court of Appeal, direct to the Supreme Court.*

Handed down by the PRIVY COUNCIL of the Vibe Justice System (VJS). 6 June 2026.

Vibe Justice System